

Banking Regulation & Policy Department
Bangladesh Bank
Head Office
Dhaka

18 August, 2008

BRPD Circular Letter No. 12

Date: -----
03 Bhadro, 1415

Chief Executive Officer
All Banking-Companies working in Bangladesh except Foreign Banks.

Dear Sir,

Appointment of Directors from the Depositors of Banking Companies Rules, 2008

On the above subject please refer to the Appointment of Directors from the Depositors of Banking Companies Rules, 2008 issued under the clause 15(5) of the Banking Companies Act, 1991 and through [notification no. BRPD\(R-1\)717/208-462](#) dated 22 July 2008.

As per the stated rules you are advised to appoint 2(two) directors from the depositors in the banking companies within 30 September 2008. Later on, if the post is vacated initiative shall be taken to appoint director in this post within 15 days from the date of vacation.

Curriculum Vitae, declaration as per Annexure-A and Personal Information as per Annexure-B of the person nominated as director shall be attached while sending the proposal for appointment of directors from the depositors to Bangladesh Bank.

Please acknowledge receipt.

Yours faithfully,

[Enclosed: 2\(two\) pages.](#)

Sd/-

(Md. Jahangir Alam)
General Manager
Phone- 7117825

Annexure-A

I, hereby, declare that as per section 15(5) of the Banking Companies Act, 1991, the Appointment of Directors from Depositors of Banking Companies Rule, 2008 and according to the Fit and Proper Test criteria set in the BRPD Circular no. 11/2007 regarding appointment of director of Banking Companies, I am eligible for the post of Director from the depositor of (name of the bank to be mentioned) I, further, state that:-

- (i) I have not convicted by any court in any criminal offence or involved in any fraud/forgery, financial crime or other illegal activities.
- (ii) There is no adverse observations/Comments against me in verdict of the court of any Civil/Criminal case.
- (iii) I am not convicted in regard to contravention of rules, regulations or discipline of the regulatory authorities of financial sector.
- (iv) I am not engaged with any political party.
- (v) I am not a defaulter of loan tax or bill.
- (vi) I have not been involved with any Company/firm whose registration/license has been revoked or cancelled or which has goes into liquidation.
- (vii) There are no loans taken by me or my allied concern from any bank or financial institution that have become defaulted
- (viii) I have not been adjudicated a bankrupt by a court.
- (ix) I am not a director, officer/staff or advisor of any bank company, financial institution, insurance company or stock exchange.
- (x) I never was a salaried staff or held an office of profit or a law advisor or an external advisor or a director of the (Name of the concern bank).
- (xi) I or my family members combinely holding percent (zero to be mentioned in case of no holding of share) share of paid-up capital of (Name of the concern bank) and except deposit and holding percent (zero to be mentioned in case of no holding of share) share of paid up capital I have no business or profit oriented relationship in (Name of the concern bank).

Date:		Signature ()
Chairman, Board of Director. Bank Ltd.		

(Name of the Bank)**Information regarding Proposed Director from Depositors**

1.	Name	
2.	Father's Name	
3.	Mother's Name	
4.	Spouse's Name (where applicable)	
5.	Date of Birth	
6.	Business Address (with Telephone No.)	
7.	Permanent Address	
8.	Deposit Account No. & Type	
9.	National ID No.	
10.	Passport No.	
11.	Tax Identification No.	
12.	Educational Qualification	
13.	Experience in Years (in terms of Section 3(Ka) of BRPD Circular No. 11/2007)	
14.	Date of First Appointment (where applicable)	
15.	Date of Last Re-Appointment (where applicable)	
16.	Date of Interval between First Appointment and Last Re-Appointment (where applicable)	
17.	Percentage of Shareholding of the Person and his/her Family Members to the total Shares of the Bank as per Section 14Ka of the Banking Companies Act, 1991 (where applicable).	

18. Particulars of Business:

Name of Company/Business Entity	Registered Address	Business Address	Credit Facility obtained	
			Yes	No
			Name of the Bank/Financial Institution/Others	

Signature:

(Managing Director)

.....Bank Ltd.

Date: